

Bhullu Yadav v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 9 October 2023 · 2023:AHC:193501-DB · WRIT - C No. 30272 of 2023 · **Disposed; ten-day clause 6.5 representation; bill not to be pressed**

HEADNOTE

Disputed electricity bill. Without examining the merits, the writ was disposed of on the Electricity Department's plea that clause 6.5 of the U.P. Electricity Supply Code, 2005 is an efficacious alternative remedy. If the petitioner filed a fresh representation within ten days, the dispute was to be considered under clause 6.5 and the bill under challenge was not to be pressed.

FACTUAL SUMMARY

Bhullu Yadav petitioned the Allahabad High Court in Writ-C No. 30272 of 2023 against the State of Uttar Pradesh and three others, disputing an electricity bill placed on record as Annexure 2. On 14 September 2023 lawyers were abstaining from work on a call of the High Court Bar Association, Allahabad. The Standing Counsel was present, and the case was directed to be put up on 27 September 2023 as fresh. The petition was taken up on 9 October 2023, when counsel for the Electricity Department appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill relegated to clause 6.5

HOLDING

A challenge to a disputed electricity bill has an efficacious alternative remedy by application under clause 6.5 of the U.P. Electricity Supply Code, 2005. Without going into the merits, the writ is disposed of on the term that if the petitioner files a fresh representation within ten days, the bill dispute shall be considered under clause 6.5 and the bill under challenge shall not be pressed. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Counsel for the Electricity Department invoked clause 6.5 as an efficacious alternative to the writ, and the Division Bench disposed of the petition on that remedy without examining the bill. ¶ 2

clause-6.5-statutory-remedy-disputed-bill The bill annexed as Annexure 2 was left to consideration under clause 6.5, conditional on a representation within ten days, in which event the bill was not to be pressed. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISPUTED ELECTRICITY BILL WAS CORRECT

The Court declined to enter the merits and left the dispute to consideration under clause 6.5 if a representation was filed within ten days. ¶ 2